

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Erin Sweeney	Team: Squad #9	CCRB Case #: 201507132	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 08/22/2015 11:30 PM	Location of Incident: North Conduit Avenue and Springfield Boulevard	Precinct: 113	18 Mo. SOL 2/22/2017	EO SOL 2/22/2017	
Date/Time CV Reported Tue, 08/25/2015 1:21 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 08/25/2015 1:21 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Rosenberg	01292	931099	HWY 03
2. POM Michael Johnson	01982	930429	HWY 03

Officer(s)	Allegation	Investigator Recommendation
A.POM Michael Rosenberg	Abuse: PO Michael Rosenberg stopped the motorcycles of § 87(2)(b) and § 87(2)(b)	
B.POM Michael Johnson	Abuse: PO Michael Johnson stopped the motorcycles of § 87(2)(b) and § 87(2)(b)	
C.POM Michael Rosenberg	Discourtesy: PO Michael Rosenberg spoke discourteously to § 87(2)(b) and § 87(2)(b)	

Case Summary

On August 22, 2015, at approximately 11:30 p.m., § 87(2)(b) and § 87(2)(b) were riding their motorcycles. At North Conduit Avenue and Springfield Boulevard in Queens, § 87(2)(b) and § 87(2)(b) were stopped by PO Michael Rosenberg and PO Michael Johnson of Highway Unit Three (**Allegations A and B**). § 87(2)(b) alleged that PO Rosenberg exited the car and said, “Get the fuck off the bikes! Stop the bikes!” to § 87(2)(b) and § 87(2)(b). PO Rosenberg said, “Give me your fucking key!” to § 87(2)(b). § 87(2)(b) had already removed her key from her bike, and refused to provide it to PO Rosenberg. PO Rosenberg told § 87(2)(b) and § 87(2)(b) to move to the side of the road, and they complied. § 87(2)(b) had moved her bike away from § 87(2)(b) and the officers. PO Rosenberg said, “Where the fuck is she going?” to § 87(2)(b). PO Rosenberg asked § 87(2)(b) for her identification, and she provided it. § 87(2)(b) § 87(2)(b) § 87(2)(b), asked PO Rosenberg, “What’s the hold up? I need to get to work.” PO Rosenberg allegedly said, “Shut the fuck up and wait,” to § 87(2)(b) (**Allegation C**).

§ 87(2)(b) received three summonses from PO Rosenberg, one for § 87(2)(b), one for § 87(2)(b), and one for § 87(2)(b) (Board Review 17). § 87(2)(b) received one summons from PO Johnson for § 87(2)(b) and one for § 87(2)(b).

This case was originally assigned to Investigator John Paul Lozada. It was reassigned to the undersigned on August 28, 2015.

This case contains video footage from PO Rosenberg’s dashboard camera (Board Review 5 for video, Board Review 6 for transcription).



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Mediation, Civil and Criminal Histories

- On August 25, 2015, § 87(2)(b) was presented with mediation via telephone, and she rejected it. On August 28, 2015, § 87(2)(b) was presented with mediation during her interview at the CCRB, and she chose to pursue an investigation (Board Review 1).
- A FOIL request to the New York City Office of the Comptroller indicated that as of November 30, 2015, no Notice of Claim had been filed in regard to this incident (Board Review 7).

- § 87(2)(b) [§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b) and § 87(2)(b) s first CCRB case (Board Review 9).
- PO Rosenberg has been a member of service for 13 years and has four total CCRB cases with seven total allegations—none of which have been substantiated. In case number 200507821, the complainant alleged that PO Rosenberg said, “Stop this immigrant bullshit,” to him, and the allegation was unfounded. In case number 201306044, the complainant alleged that PO Rosenberg said, “You women with your

feminist movement...Ever since then, you just can't shut up." That allegation was unsubstantiated (Board Review 10).

- PO Johnson has been a member of service for 13 years and has seven total CCRB cases with 12 allegations—none of which have been substantiated. § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) and § 87(2)(b) both learned PO Rosenberg's name and shield number (1292) by reading his shield. § 87(2)(b) described PO Rosenberg as a white male in his 30s or 40s who stood approximately 6'0" tall, was slightly fat, and had a bald head (Board Review 1). § 87(2)(b) described PO Rosenberg as a white male with a heavy build and a bald head (Board Review 2). PO Rosenberg's MOS photo lists him as a § 87(2)(b) year-old white male who stands 5'9" tall, weighs 240 pounds, and has short § 87(2)(b) hair and § 87(2)(b) eyes (Board Review 12). PO Rosenberg acknowledged interacting with § 87(2)(b) and § 87(2)(b) § 87(2)(g).
- § 87(2)(b) described PO Rosenberg's partner, identified via the investigation as PO Johnson, as a Hispanic male in his 30s or 40s who was taller than 6'0," was slightly fat, and had a bald head (Board Review 1). § 87(2)(b) described PO Johnson as a white male who was taller than PO Rosenberg (Board Review 2). PO Johnson is a § 87(2)(b) -old white male who stands 6'0" tall, weighs 236 pounds, and has a bald head and § 87(2)(b) eyes (Board Review 13). PO Johnson acknowledged interacting with § 87(2)(b) and § 87(2)(b) § 87(2)(g).

Allegation A—Abuse of Authority: PO Michael Rosenberg stopped the motorcycles of

§ 87(2)(b) and § 87(2)(b)

Allegation B—Abuse of Authority: PO Michael Johnson stopped the motorcycles of

§ 87(2)(b) and § 87(2)(b)

§ 87(2)(b) stated that as she was waiting near the exit of the gas station located at the intersection of North Conduit Avenue and Springfield Boulevard, a marked patrol car drove by and looked at her. Approximately one minute after she and § 87(2)(b) rode away from the gas station, the officers, who were driving on the shoulder of North Conduit Avenue, turned their car left to cut off § 87(2)(b) and § 87(2)(b) as they were riding. § 87(2)(b) denied committing any traffic violations. Both her helmet and her motorcycle were legal (Board Review 1).

§ 87(2)(b) corroborated § 87(2)(b)'s statements about the circumstances leading up to the stop. She also stated that her helmet was DOT-approved and was properly labeled with a DOT sticker (Board Review 2).

PO Rosenberg stated that he was driving westbound on North Conduit Avenue when he observed § 87(2)(b) and § 87(2)(b) exit the gas station. PO Rosenberg estimated that he was approximately 100 feet from § 87(2)(b) and § 87(2)(b) when he first noticed them. He saw that both of their helmets were dome-shaped and had edges that flared up on the sides. PO Rosenberg knew from his experience that these helmets were non-DOT-approved. PO Rosenberg did not stop § 87(2)(b) and § 87(2)(b) immediately after he noticed the helmets because, in his experience, motorcyclists often speed up when they realize officers are trying to stop them. PO

Rosenberg decided to wait for an opportunity to cut them off in order to prevent them from fleeing. There was no other reason that he stopped them besides the non-DOT-approved helmets. PO Rosenberg issued § 87(2)(b) the summonses for wearing an improper helmet, having an unregistered bike, and not having an inspection sticker on her bike (Board Review 3).

PO Johnson corroborated PO Rosenberg's statement that they observed both § 87(2)(b) and § 87(2)(b) wearing non-DOT-approved helmets. This was the only reason why they stopped them. PO Johnson issued the summonses to § 87(2)(b) (Board Review 4).

Article Nine, subsection 381 (6) of the New York Vehicle and Traffic Law states that motorcyclists must wear a helmet that adheres to the requirements outlined in the federal motor vehicle safety standards. Novelty helmets such as German Army style helmets do not meet federal requirements (Board Review 14).

§ 87(2)(g)

Allegation C—Discourtesy: PO Michael Rosenberg spoke discourteously to § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) stated that upon stopping them, PO Rosenberg exited the car and said, "Get the fuck off the bikes! Stop the bikes!" PO Rosenberg approached § 87(2)(b) and took her key out of her bike. PO Rosenberg said to § 87(2)(b) "Give me your fucking key!" § 87(2)(b) had already removed her key from her bike. § 87(2)(b) replied, "I'm not giving you my key. Why did you stop us?" PO Rosenberg replied, "You follow my orders! Give me your key!" § 87(2)(b) said, "Hold on, I'm law enforcement. You need to calm down. I have my identification. What is the problem?" PO Rosenberg said, "I don't care about what you do, you follow me. Drive your bikes to the side of the highway." § 87(2)(b) said, "What's the holdup? I need to get to work." PO Rosenberg said, "Don't worry about the holdup—Shut the fuck up and wait." When PO Rosenberg returned § 87(2)(b)'s identification, he said, "You're not law enforcement; you're just a jail guard" (Board Review 1).

§ 87(2)(b) stated that PO Rosenberg said, "Shut the fucking bikes off!" and, "Give me your fucking keys!" PO Rosenberg tried to reach for § 87(2)(b)'s keys and repeated, "Where the fuck are the keys?" PO Rosenberg was irate and shaking. PO Rosenberg found the keys and snatched them out of the bike. PO Rosenberg told § 87(2)(b) and § 87(2)(b) to move to the side of the road, and § 87(2)(b) complied. § 87(2)(b) started to move her bike farther away from § 87(2)(b) and PO Rosenberg said, "Where the fuck is she going?" § 87(2)(b) replied, "I don't know!" (Board Review 2).

PO Rosenberg described his demeanor as "firm and respectful." He denied saying anything similar to "Get the fuck off the bikes," "Give me your fucking keys," "Shut the fuck up and wait," or "Where the fuck is she going?" He did not hear PO Johnson say those things or anything similar. PO Rosenberg denied using any profanity during the incident. He acknowledged that he has a loud voice, but denied yelling at § 87(2)(b) and § 87(2)(b) (Board Review 3).

PO Johnson denied hearing PO Rosenberg use any profanity during this incident (Board Review 4).

The audio on PO Rosenberg's dashboard footage does not begin until approximately one minute after § 87(2)(b) and § 87(2)(b) were stopped. § 87(2)(g)

§ 87(2)(g) The audio is intermittent throughout the video, but at no point is PO Rosenberg heard speaking discourteously to § 87(2)(b) or § 87(2)(b) PO Rosenberg explains to § 87(2)(b) that it does not matter if she is § 87(2)(b) —she could be seriously injured if she is in an accident while wearing an improper helmet (Board Review 5).



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§ 87(2)(g)

Squad: 9

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date